OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Questions to Shoalhaven Council on land sales, CEO complaints, job cuts and consultation

Sent 14 September 2026 · To Cr Wilkins · Response requested by 28 September 2026

14 September 2026

The Mayor and Councillors

Shoalhaven City Council

By email

Dear A/g Mayor Wilkins and Councillors,

Re: Four current Council matters, measured against the 2026 Purpose of Government Pulse

The Centre for Policy Development has just published the Purpose of Government Pulse 2026, the tenth wave of a national survey tracking Australian attitudes to government since 2015 (n=1,002, ±3.5% at 95% confidence). It is a national survey, not a Shoalhaven one, but the questions it asks go directly to matters currently before this Council. I'm writing to put four of them to you directly and to ask what each of you intends to do about them.

1. Public land divestment (CL26.157). 73% of Australians surveyed said governments should focus on preventing problems early by investing now, rather than reactive measures that are cheaper upfront. Council's resolution moves roughly 20 public land parcels toward sale as a package. I haven't seen a parcel-by-parcel, long-term public-value case published for any of them.

• Q1 What is the individual, long-term public-value assessment for each parcel, and will it be published before any sale proceeds?

1. Code of Conduct complaints about the CEO (BAR26-00013, BAR25-00162, BAR25-00170). 58% of respondents said their elected representatives do not seem to be serving their interests — up six points since 2023, the steepest decline the survey has recorded. All three complaints concerning CEO Andrew Constance were determined by the Mayor, who leads the majority the CEO answers to. Whatever the merits of any individual determination, that structure is the one the 58% finding describes.

• Q2 Will Council refer any future Code of Conduct complaint involving the CEO to an independent or externally delegated determiner, rather than the Mayor?

1. The October 2025 restructure. 84% of respondents said it's important that government keep the capability and skills to deliver services directly. Council disestablished 52 positions, created 12, and claimed roughly $3.5 million in annual

savings. I have not seen published evidence of which disestablished functions were, or weren't, restored under a different title since.

● Q3 Will Council publish a plain accounting of which functions were disestablished, which have since reappeared under new titles, and what that means for the $3.5 million figure?

1. Consultation at Narrawallee Beach and Erowal Bay. 65% of respondents said ordinary citizens should have a much greater say in setting policy priorities — a figure that has been rising. Residents in both matters have described consultation that arrived late, thin, or after works were already underway.

● Q4 Will Council commit to consulting before irreversible steps — clearing, procurement, site works — rather than in parallel with them?

I know the Council resolutions above were carried by a majority, and I don't yet have a verified division list showing how each of you voted on each matter. If your own vote or public position differs from what I've described, I'd genuinely like to know that, and I'll correct the record accordingly. Where it doesn't differ, I'd still like your answer to the question above in your own words.

I intend to publish your responses, in full and without editing beyond typographical correction, alongside this letter. Non-response will be recorded plainly and without comment.

I'd appreciate a response within 14 days.

Yours faithfully,

Steve Prothero

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